

plaintiff has performed all obligations except those excused or prevented from performance; and (4) plaintiff has suffered damages in the amount of \$4,560.71, the unpaid balance owed at the time of defendant's default. (Complaint, BC-1 – BC-4.) These statements are sufficient to plead the elements of a breach of contract cause of action in California. (See *Hodroj* at 276.)

Defendant asserts there is some defect in the pleading related to plaintiff's change in corporate structure identified in paragraph 9. "On October 1, 2022, Capital One Bank (USA), N.A. became Capital One, N.A., successor by merger." The new entity created by the merger assumed all rights and obligations of the previous entity and defendant presents no authority for a contrary position. Defendant fails to demonstrate any defect in the pleading based on this allegation.

Defendant's demurrer is overruled.

Motion to Quash

Defendant moves to quash service of summons on the grounds that plaintiff lacks standing to bring this action. Defendant also argues the complaint should be dismissed based on the failure to join an indispensable party.

Legal Standard

CCP § 418.10 authorizes quashing a summons based on invalid service, delay in prosecution under CCP § 583.110 et seq., or on grounds of inconvenient forum. A motion to quash is not the proper means to substantively challenge the claim or the plaintiff's right to pursue it. CCP § 418.10. Here, the legal authorities provided in defendant's motion do not support the requested relief and her assertions about plaintiff's ability to prove its claims are inapplicable at this stage of the proceedings. CCP §§ 418.10; 583.110 et seq.

Defendant's motion to quash is denied. Defendant shall file and serve her answer to the complaint within 15 days of service of notice of entry of order.

5. M-CV-0096555 Sansom, James v. Chiang, Jennifer

Demurrer to the Second Amended Complaint ("SAC")

Defendants demur to the SAC in this unlawful detainer action. A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at subd. (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

The court has carefully reviewed the SAC and the exhibits thereto. The court finds the SAC alleges facts sufficient to support a cause of action for unlawful detainer. The demurrer to the SAC is overruled.

Defendants shall file and serve an answer by June 29, 2026.

6. S-CV-0027191 Squaw Creek Condominium Assoc. v. Squaw Creek Assocs.

The motion is dropped in light of the moving party's request to remove from calendar filed with the court on June 17, 2026.

7. S-CV-0046091 Bakos, Matthew C vs. Roach, William

Motion for Leave to File a First Amended Complaint ("FAC")

Plaintiff moves to amend his initial complaint to add four additional causes of action.

Defendant's opposition was filed and served on June 16, 2026, providing a mere four court days' notice rather than the required nine court days' notice. (Code Civ. Proc., § 1005, subd. (b).) Defendant provides no explanation for the untimely filing. Plaintiff objects to the untimely opposition. The court sustains the objection and does not consider the untimely opposition.

The court may permit a party to amend a pleading in the furtherance of justice and on such terms as may be just. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Leave to amend is generally exercised liberally provided there is no showing of prejudice to the opposing party. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) Despite the policy of liberally allowing amendments, whether to grant or deny an amendment is nonetheless "largely within the sound discretion of the trial court" and "its exercise will not be disturbed in the absence of a showing of gross abuse." (*Jew Fun Him v. Occidental Life Ins. Co.* (1948) 88 Cal.App.2d 246, 249.) Denial is not an abuse of discretion where the complaint would not have been sufficient to state a cause of action if the proposed amendments had been allowed. (*Stiebel v. Roberts* (1941) 42 Cal.App.2d 434.)

The motion is granted. (Code Civ. Proc., § 473, subd. (a)(1).) Plaintiff shall file and serve his first amended complaint by July 6, 2026.